ARKANSAS REGISTER

Proposed Rule Cover Sheet

Secretary of State
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Name of Department Department of Health

Agency or Division Name Arkansas State Medical Board

Other Subdivision or Department, If Applicable

Previous Agency Name, If Applicable

Contact Person Amy Embry

Contact E-mail amy.embry@armedicalboard.org

Contact Phone 501-296-1802

Name of Rule Rule 42 - Licensure for Uniformed Service Member, Veterans, and Spouses

Newspaper Name Arkansas Democrat Gazette

Date of Publishing November 4-6, 2023

Final Date for Public Comment December 4, 2023

Location and Time of Public Meeting

NOTICE OF PUBLIC HEARING

In compliance with ACA 25-15-204, the Arkansas State Medical Board gives notice of amendments to the Medical Practices Act and to the following rules: Rule 10 – Practice of Respiratory Care Practitioners; Rule 18 – Fee Schedule for Centralized Verification Service; Rule 24 – Physician Assistants; Rule 28 – Education Licenses; Rule 40 – Surgical Technologists; Rule 42 – Licensure for Uniformed Service Member, Veterans, and Spouses. A copy of the amended rules as referred to herein may be found at armedicalboard.org.

All individuals desiring to provide comments may do so. All written comments may be sent to Arkansas State Medical Board, 1401 W. Capitol, Suite 340, Little Rock, Arkansas, 72201 or to PublicHearingComments@armedicalboard.org. The public comment period will end on Monday, December 4, 2023 at 4:30 p.m.

QUESTIONNAIRE FOR FILING PROPOSED RULES WITH THE ARKANSAS LEGISLATIVE COUNCIL

DEPARTMENT Arkansas Department of Health
BOARD/COMMISSION Division of Health Related Boards: State Medical Board
BOARD/COMMISSION DIRECTOR Matt Gilmore, ADH Boards and Commissions Coordinator
CONTACT PERSON Amy Embry, Director
ADDRESS 1401 W. Capitol, Suite 340, Little Rock, AR 72201
PHONE NO. (501) 296-1802 **EMAIL** amy.embry@armedicalboard.org
NAME OF PRESENTER(S) AT SUBCOMMITTEE MEETING
Amy Embry and Matt Gilmore
PRESENTER EMAIL(S) amy.embry@armedicalboard.org matt.gilmore@arkansas.gov

INSTRUCTIONS

In order to file a proposed rule for legislative review and approval, please submit this Legislative Questionnaire and Financial Impact Statement, and attach (1) a summary of the rule, describing what the rule does, the rule changes being proposed, and the reason for those changes; (2) both a markup and clean copy of the rule; and (3) all documents required by the Questionnaire.

If the rule is being filed for permanent promulgation, please email these items to the attention of Rebecca Miller-Rice, miller-ricer@blr.arkansas.gov, for submission to the Administrative Rules Subcommittee.

If the rule is being filed for emergency promulgation, please email these items to the attention of Director Marty Garrity, garritym@blr.arkansas.gov, for submission to the Executive Subcommittee.

Please answer each question completely using layman terms.

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1. What is the official title of this rule?
   Rule No. 42: Licensure for Uniformed Service Members, Veterans, and Spouses

2. What is the subject of the proposed rule? To update licensing requirements per Act 137 of 2023.

3. Is this rule being filed under the emergency provisions of the Arkansas Administrative Procedure Act? Yes ☐ No ☑

   If yes, please attach the statement required by Ark. Code Ann. § 25-15-204(c)(1).

   If yes, will this emergency rule be promulgated under the permanent provisions of the Arkansas Administrative Procedure Act? Yes ☐ No ☐

4. Is this rule being filed for permanent promulgation? Yes ☑ No ☐

If yes, was this rule previously reviewed and approved under the emergency provisions of the Arkansas Administrative Procedure Act? Yes ☐ No ☑

If yes, what was the effective date of the emergency rule? _____

On what date does the emergency rule expire?_____

5. Is this rule required to comply with a *federal* statute, rule, or regulation? Yes ☐ No ☑

If yes, please provide the federal statute, rule, and/or regulation citation.

6. Is this rule required to comply with a *state* statute or rule? Yes ☑ No ☐

If yes, please provide the state statute and/or rule citation.

Act 137 of 2023

7. Are two (2) rules being repealed in accord with Executive Order 23-02? Yes ☐ No ☑

If yes, please list the rules being repealed.
If no, please explain.

N/A - This is not a new rule but an amendment only.

8. Is this a new rule? Yes ☐ No ☑

Does this repeal an existing rule? Yes ☐ No ☑
If yes, the proposed repeal should be designated by strikethrough. If it is being replaced with a new rule, please attach both the proposed rule to be repealed and the replacement rule.

Is this an amendment to an existing rule? Yes ☑ No ☐
If yes, all changes should be indicated by strikethrough and underline. In addition, please be sure to label the markup copy clearly as the markup.

9. What is the state law that grants the agency its rulemaking authority for the proposed rule, outside of the Arkansas Administrative Procedure Act? Please provide the specific Arkansas Code citation(s), including subsection(s).

17-95-303

10. Is the proposed rule the result of any recent legislation by the Arkansas General Assembly?
Yes ☑ No ☐

If yes, please provide the year of the act(s) and act number(s).

Act 137 of 2023

11. What is the reason for this proposed rule? Why is it necessary?

To update licensing requirements per Act 137 of 2023 allowing for acceptance of uniformed service national certification toward occupational licensure qualifications or requirements when considering an application for initial licensure.

12. Please provide the web address by which the proposed rule can be accessed by the public as provided in Ark. Code Ann. § 25-19-108(b)(1).

www.armedicalboard.org

13. Will a public hearing be held on this proposed rule? Yes ☐ No ☑

If yes, please complete the following:

Date:_____

Time:_____

Place:_____

Please be sure to advise Bureau Staff if this information changes for any reason.

14. On what date does the public comment period expire for the permanent promulgation of the rule? Please provide the specific date. 12/04/2023

15. What is the proposed effective date for this rule? 01/31/2024

16. Please attach (1) a copy of the notice required under Ark. Code Ann. § 25-15-204(a)(1) and (2) proof of the publication of that notice.

17. Please attach proof of filing the rule with the Secretary of State, as required by Ark. Code Ann. § 25-15-204(e)(1)(A).

18. Please give the names of persons, groups, or organizations that you anticipate will comment on these rules. Please also provide their position (for or against), if known.

Possibly licensees, and professional organizations and associations.

19. Is the rule expected to be controversial? Yes ☐ No ☑

If yes, please explain.

FINANCIAL IMPACT STATEMENT

PLEASE ANSWER ALL QUESTIONS COMPLETELY.

DEPARTMENT Arkansas Department of Health
BOARD/COMMISSION Division of Health Related Boards: State Medical Board
PERSON COMPLETING THIS STATEMENT Amy Embry
TELEPHONE NO. (501) 296-1802 **EMAIL** amy.embry@armedicalboard.org

To comply with Ark. Code Ann. § 25-15-204(e), please complete the Financial Impact Statement and email it with the questionnaire, summary, markup and clean copy of the rule, and other documents. Please attach additional pages, if necessary.

TITLE OF THIS RULE Rule No. 42: Licensure for Uniformed Service Members, Veterans, and Spouses

1. Does this proposed, amended, or repealed rule have a financial impact?
   Yes ☐ No ☑

2. Is the rule based on the best reasonably obtainable scientific, technical, economic, or other evidence and information available concerning the need for, consequences of, and alternatives to the rule?
   Yes ☑ No ☐

3. In consideration of the alternatives to this rule, was this rule determined by the agency to be the least costly rule considered? Yes ☑ No ☐

   If no, please explain:

   (a) how the additional benefits of the more costly rule justify its additional cost;

   (b) the reason for adoption of the more costly rule;

   (c) whether the reason for adoption of the more costly rule is based on the interests of public health, safety, or welfare, and if so, how; and

   (d) whether the reason for adoption of the more costly rule is within the scope of the agency's statutory authority, and if so, how.

4. If the purpose of this rule is to implement a *federal* rule or regulation, please state the following:

   (a) What is the cost to implement the federal rule or regulation?

Current Fiscal Year

General Revenue_____
Federal Funds_____
Cash Funds_____
Special Revenue_____
Other (Identify)_____

Total $ 0.00

Next Fiscal Year

General Revenue_____
Federal Funds_____
Cash Funds_____
Special Revenue_____
Other (Identify)_____

Total $ 0.00

(b) What is the additional cost of the state rule?

Current Fiscal Year

General Revenue_____
Federal Funds_____
Cash Funds_____
Special Revenue_____
Other (Identify)_____

Total $ 0.00

Next Fiscal Year

General Revenue_____
Federal Funds_____
Cash Funds_____
Special Revenue_____
Other (Identify)_____

Total $ 0.00

5. What is the total estimated cost by fiscal year to any private individual, private entity, or private business subject to the proposed, amended, or repealed rule? Please identify those subject to the rule, and explain how they are affected.

Current Fiscal Year
$ 0.00

Next Fiscal Year
$ 0.00

6. What is the total estimated cost by fiscal year to a state, county, or municipal government to implement this rule? Is this the cost of the program or grant? Please explain how the government is affected.

Current Fiscal Year
$ 0.00

Next Fiscal Year
$ 0.00

7. With respect to the agency's answers to Questions #5 and #6 above, is there a new or increased cost or obligation of at least one hundred thousand dollars ($100,000) per year to a private individual, private entity, private business, state government, county government, municipal government, or to two (2) or more of those entities combined?

Yes ☐ No ☑

If yes, the agency is required by Ark. Code Ann. § 25-15-204(e)(4) to file written findings at the time of filing the financial impact statement. The written findings shall be filed simultaneously with the financial impact statement and shall include, without limitation, the following:

(1) a statement of the rule's basis and purpose;

(2) the problem the agency seeks to address with the proposed rule, including a statement of whether a rule is required by statute;

(3) a description of the factual evidence that:
(a) justifies the agency's need for the proposed rule; and
(b) describes how the benefits of the rule meet the relevant statutory objectives and justify the rule's costs;

(4) a list of less costly alternatives to the proposed rule and the reasons why the alternatives do not adequately address the problem to be solved by the proposed rule;

(5) a list of alternatives to the proposed rule that were suggested as a result of public comment and the reasons why the alternatives do not adequately address the problem to be solved by the proposed rule;

(6) a statement of whether existing rules have created or contributed to the problem the agency seeks to address with the proposed rule and, if existing rules have created or contributed to the problem, an explanation of why amendment or repeal of the rule creating or contributing to the problem is not a sufficient response; and

(7) an agency plan for review of the rule no less than every ten (10) years to determine whether, based upon the evidence, there remains a need for the rule including, without limitation, whether:
(a) the rule is achieving the statutory objectives;
(b) the benefits of the rule continue to justify its costs; and
(c) the rule can be amended or repealed to reduce costs while continuing to achieve the statutory objectives.

RULE 42 LICENSURE FOR UNIFORMED SERVICE MEMBERS, VETERANS, AND SPOUSES

1. Definitions:

a. As used in this section, "expedited licensure" means the granting of occupational licensure without an individual's having met occupational licensure requirements provided under Title 17 of the Arkansas Code or by these Rules.

b. As used in this section, "uniformed service veteran" means a former member of the United States Uniformed Services discharged under circumstances other than dishonorable.

c. As used in this section, "uniformed service member" means an active or reserve component member of the United States Air Force, United States Army, United States Coast Guard, United States Marine Corps, United States Navy, United States Space Force, National Guard, or the United States Commissioned Corps of the Public Health Service; or an active component member of the National Oceanic and Atmospheric Administration Commissioned Officer Corps.

2. Licensure:

a. The Arkansas State Medical Board shall allow the following individuals to secure employment with a temporary license, certificate, or permit while completing the application process for full licensure or certification or permitting if the individual is the holder in good standing of relevant and applicable uniformed service education, training, national certification, or service-issued credential toward occupational licensure qualifications or requirements, or the holder of a substantially equivalent license, certificate, or permit issued by another state:

(1) An active duty military service member stationed in the State of Arkansas;

(2) A returning military veteran ~~applying within one (1) year of his or her discharge from active duty~~; or

(3) The spouse of:

(A) A person under a (1) or (2) above;

(B) A uniformed service member who is assigned a tour of duty that excludes the uniformed service member's spouse from accompanying the uniformed service member and the spouse relocates to this state; or

(C) A uniformed service member who is killed or succumbs to his or her injuries or illness in the line of duty if the spouse establishes residency in the state.

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b. The Board shall expedite the process and procedure for full licensure, certification, or permitting to an individual who is the holder in good standing of a license with a similar scope of practice issued by another state, territory, or district of the U.S and is:

(1) A uniformed service member stationed in the State of Arkansas;

(2) A uniformed service veteran who resides in or establishes residency in the State of Arkansas; or

(3) The spouse of:

(A) A person under a (1) or (2) above;

(B) A uniformed service member who is assigned a tour of duty that excludes the uniformed service member's spouse from accompanying the uniformed service member and the spouse relocates to this state; or

(C) A uniformed service member who is killed or succumbs to his or her injuries or illness in the line of duty if the spouse establishes residency in the state.

c. The Board shall expedite the process and procedure for full licensure, certification, or permitting to an individual who is the holder in good standing of a license with a similar scope of practice issued by another state, territory, or district of the U.S and is in receipt of all the below:

(1) Payment of the initial licensure fee;

(2) Evidence that the individual holds a license with a similar scope of practice in another state; and

(3) Evidence that the applicant is a qualified applicant under Section 2. a. above.

d. The expiration date of a license for a deployed uniform service member or spouse will be extended for one hundred and eighty (180) days following the date of the uniformed service member's return from deployment.

e. A full exemption from continuing education requirements will be allowed for a deployed uniform service member or spouse until one hundred and eighty (180) days following the date of the uniformed service member's return from deployment.

f. A temporary license, certificate, or permit granted under this section shall be in effect for at least ninety (90) days or until such time as the Board is able to take action on the expedited application.

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